

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-07

Impact Products, LLC *et al.*, Complainants v. CMA CGM S.A., Respondent

JOINT MOTION FOR PROTECTIVE ORDER

Complainants Impact Products, LLC and Safety Zone, LLC (“Complainants”), and Respondent CMA CGM S.A. (“CMA” or “Respondent”) hereby move pursuant to Rule 201(i) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.141(j), for entry of a protective order in connection with the above-captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached hereto as **Attachment A** for consideration by the Presiding Officer (“ALJ”). The parties have agreed to the terms of the Protective Order.

Dated: July 25, 2024

Respectfully submitted,

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Attorneys for Respondent CMA CGM S.A.

ATTACHMENT A

**Before the
FEDERAL MARITIME COMMISSION**

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Impact Products, LLC *et al.*, Complainants v. CMA CGM S.A., Respondent

CONFIDENTIALITY STIPULATION AND PROPOSED PROTECTIVE ORDER

WHEREAS, the above-captioned Federal Maritime Commission (the “Commission”) proceeding (the “Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and/or financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the respective undersigned counsel for Complainants Impact Products, LLC and Safety Zone, LLC (“Complainants”) and Respondent CMA CGM, S.A. (“Respondent” or “CMA” and collectively with Complainants, the “Parties”) that this Confidentiality Stipulation and Proposed Protective Order shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Confidential Information” (defined below), including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Confidential Information. These materials shall be referred to hereinafter as “Proceeding Material.” A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this

Proceeding shall be referred to hereinafter as a “Producing Party.” Any Party to this Proceeding who receives Proceeding Material shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material it produces as “Confidential” when such information or Proceeding Material reveals or reflects:

- a. unpublished business, financial, research, or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that the Producing Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, proprietary in nature, or otherwise entitled to protection under 46 C.F.R. § 502.14l(j)(l) of the Commission’s Rules of Practice and Procedure, or;
- d. information that is not publicly known, that is not in the public domain, or that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.

2. Any Producing Party to this Proceeding, may designate information or Proceeding Material as “Confidential—Attorneys Eyes Only” to the extent it qualifies for designation as “Confidential” and, in addition, if the Producing Party believes in good faith that disclosure to the Receiving Party would create a substantial risk of serious injury to the Producing Party (“Confidential—Attorneys Eyes Only”).

3. Information or Proceeding Material designated as Confidential or Confidential – Attorneys Eyes Only shall be referred to hereinafter as “Confidential Information.”

General Provisions

4. All Producing Parties designating Proceeding Material as Confidential Information shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 C.F.R. §§ 502.5(b) and 502.141(j)(1)(vii).

5. Proceeding Material, including Confidential Information disclosed by a Producing Party, shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

6. Each Receiving Party and all other persons bound by the terms of this Protective Order shall use material designated as Confidential Information by any Producing Party other than itself solely for the purpose of this Proceeding, and not for any other purpose whatsoever. The Receiving Party shall not make any copies, duplicates, extracts, summaries, or descriptions of Confidential Information except as may be reasonably necessary in the litigation of this Proceeding. This Confidentiality Stipulation and Proposed Protective Order shall be fully applicable to all such copies, duplicates, extracts, summaries, or descriptions of Confidential Information.

7. The distribution and dissemination of any information or Proceeding Material designated as “Confidential” is limited to the following persons:

- a. outside counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;

- b. any officer, manager, Board Member, or employee (including an in-house attorney) of either Party who may be consulted regarding this Proceeding, but only upon a legitimate need to know;
- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, videographers, stenographers, and clerical employees whose duties and responsibilities require access to such materials;
- e. the Presiding Officer (Administrative Law Judge or “ALJ”), the Commission, and Commission staff and personnel; and
- f. any person who created or previously received that Proceeding Material based on the face of that Proceeding Material if necessary to allow deposition of that person.

8. All persons authorized to receive and view information or Proceeding Material designated as “Confidential” shall take reasonable steps to secure against unauthorized or inadvertent disclosure, and shall limit access to those persons identified above in Paragraph 7.

9. Persons identified in Paragraphs 7(b), 7(c) and 7(d) shall read and agree to the terms of this Confidentiality Stipulation and Proposed Protective Order by signing a confidentiality agreement substantially in the form of Appendix A. Outside counsel for the Receiving Party shall retain the original of all executed confidentiality agreements.

10. The distribution and dissemination of any information or Proceeding Material designated as “Confidential-Attorneys Eyes Only” is limited to the following persons:

- a. Outside counsel for the Receiving Party, their employees and outside photocopying, graphic production services or litigation support services assisting such counsel, and computer service personnel performing duties in relation to a computerized litigation system;
- b. The Court, court reporters, videographers, stenographers, and court personnel, as are necessarily incident to depositions, hearings or trial;
- c. Outside experts or consultants who are not regular employees of a Party but are retained on behalf of any of the Parties by their outside counsel to assist in the preparation of this case; and
- d. Any person who is an employee of the Producing Party, or a former employee of the Producing Party (if they were employed by the Producing Party when the Confidential-Attorneys Eyes Only material or information was created).

11. All persons authorized to receive and view Proceeding Material designated as “Confidential-Attorneys Eyes Only” shall take reasonable steps to secure against unauthorized or inadvertent disclosure, and shall limit access to those persons identified above in Paragraph 10.

12. Persons identified in Paragraphs 10(c) and 10(d) shall read and agree to the terms of this Confidentiality Stipulation and Proposed Protective Order by signing a confidentiality agreement substantially in the form of Appendix A. Outside counsel for the Receiving Party shall retain the original of all executed confidentiality agreements.

13. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Confidentiality Stipulation and Proposed Protective Order, shall promptly:

- a. notify the ALJ and the Producing Party of the unauthorized disclosures of such Confidential Information;
- b. use its best efforts to retrieve all copies of the disclosed Confidential Information;
- c. inform those to whom unauthorized disclosures were made of all of the terms of this Confidentiality Stipulation and Proposed Protective Order.

14. Within forty-five (45) days after the final conclusion of this Proceeding, including exhaustion of all appeals, the Parties shall either destroy all Proceeding Material, including Proceeding Material designated Confidential Information, received from other Producing Parties or, upon the Producing Party's request, return such Proceeding Material to the original Producing Party at that Producing Party's expense.

15. Unless otherwise ordered or agreed to by a Producing Party with respect to that Producing Party's Proceeding Material, this Confidentiality Stipulation and Proposed Protective Order shall remain in force after the final conclusion of this Proceeding not subject to further appeal for a period of two years.

Privileged and Protected Material

16. The Producing Parties preserve any and all privileges and exemptions, including but not limited to the attorney-client privilege and attorney work product doctrine, which apply to any and all Proceeding Material.

17. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure and Federal Rules of Evidence.

18. Within forty-eight (48) hours of the receipt of a written notice from a Producing Party claiming inadvertent disclosure of privileged or protected Proceeding Material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such written notice, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected Proceeding Material inadvertently produced by the Producing Party identified in such written notice, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as privileged or protected in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure and Federal Rules of Evidence.

Use of Confidential Information in Commission Hearings

19. Confidential Information disclosed to the ALJ and/or Commission in papers, including exhibits, shall be labeled in accordance with 46 C.F.R. § 502.5 and the Commission's Initial Order of February 29, 2024, incorporated herein by reference.

20. The provisions of this Confidentiality Stipulation and Proposed Protective Order shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ's Initial Order of February 29, 2024 shall control the procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 C.F.R. §502.141(j)(l).

21. The Parties shall limit their CONFIDENTIAL or CONFIDENTIAL—ATTORNEYS EYES ONLY designations solely to information which they in good faith believe to fall within the scope of this Confidentiality Stipulation and Proposed Protective Order. No Receiving Party shall be under any obligation to object to the designation of any document or

information at the time such designation is made or at any time thereafter, and no Party shall, by failure to object, be found to have acquiesced or agreed to such designation or be barred from objecting to such designation at any time.

22. The provisions of this Confidentiality Stipulation and Proposed Protective Order shall not affect, and does not limit, the use or admissibility of such protected information or material or references to such information or material as evidence at trial, or during a hearing or similar proceeding in this Proceeding or as part of the record on appeal, provided that any Party may seek an appropriate Order to protect such material.

Designating Protected Material

23. Documents containing Confidential Information as defined in Paragraphs 1 and 2 shall be marked or stamped with the legend “CONFIDENTIAL” or “CONFIDENTIAL—ATTORNEYS EYES ONLY” on each page of that document that contains such information. Parties shall take reasonable steps to ensure that copies of such documents marked “CONFIDENTIAL” or “CONFIDENTIAL—ATTORNEYS EYES ONLY” and any extracts, summaries, and compilations therefrom, shall also be so marked.

24. Where a Producing Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter that identifies the Bates Numbers of the electronic documents or that adequately describes the electronic documents that contain Confidential Information. Electronic files and documents produced in native format may be marked by using “CONFIDENTIAL” or “CONFIDENTIAL—ATTORNEYS EYES ONLY” in the file names or on placeholders in the Producing Party's document production.

25. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii)

sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy. Unless otherwise agreed by the Producing Party, a transcript shall be treated as Confidential until the expiration of the ten-day period. Where the Producing Party is not present at a deposition, any party using Confidential Information at the deposition shall provide the deposition transcript to the Producing Party as soon as it is available, and that Producing Party will be afforded the same ten-day period after receipt to provide notice of designating the testimony as Confidential Information.

26. Any Producing Party that designates information or Proceeding Material for protection under this Confidentiality Stipulation and Proposed Protective Order must take care to limit any such designation to specific material that qualifies for such protection.

27. Once the Receiving Party has notice that the Producing Party has designated information or Proceeding Material as Confidential Information, the Receiving Party shall treat the designated information or Proceeding Material as Confidential Information in accordance with this Confidentiality Stipulation and Proposed Protective Order regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

28. Any Party may challenge a designation information or Proceeding Material as “Confidential” or “Confidential—Attorneys Eyes Only” at any time that is consistent with the then-operative Scheduling Order in the Proceeding.

29. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party's counsel of record in the Proceeding.

30. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting Party's counsel

may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

Reservation of Rights

31. The ALJ shall retain jurisdiction over the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential Information disclosed under protection of this Confidentiality Stipulation and Proposed Protective Order.

32. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Confidential Information pursuant to such process without first giving that Producing Party notice for an opportunity to seek an order governing disclosure of the requested Confidential Information. The Producing Party shall have the sole burden of defending against such request.

33. This Confidentiality Stipulation and Proposed Protective Order may be amended by further order of the Commission and is without prejudice to the rights of any Party to move for relief from any of its provisions or to seek or agree to different or additional protection for any particular material or information.

Dated: July 25, 2024

STIPULATED AND AGREED:

/s/ Timothy R. Herman
Clark Hill PLC
Attorneys for Complainants

/s/ K. Barrett Luxhoj
Crenshaw, Ware & Martin, PLC
Attorneys for Respondent

SO ORDERED:

Erin M. Wirth
Chief Administrative Law Judge

APPENDIX A

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-07

Impact Products, LLC *et al.*, Complainants v. CMA CGM S.A., Respondent

CERTIFICATION REGARDING PROTECTIVE ORDER

I, _____, have been asked by counsel for the **Complainants / Respondent** [circle one], _____ [Party name(s)], in the above-captioned matter to review certain confidential documents or other information designated as CONFIDENTIAL or CONFIDENTIAL—ATTORNEYS EYES ONLY that is subject to the Confidentiality Stipulation and Protective Order that has been or will be entered by the Commission in the above captioned proceeding.

I have received a copy of the Confidentiality Stipulation and Protective Order in this Proceeding. I have carefully read and understand its provisions. I will comply with all provisions of the Confidentiality Stipulation and Protective Order.

I will take reasonable steps to restrict access to any materials designated as CONFIDENTIAL or CONFIDENTIAL—ATTORNEYS EYES ONLY to only those persons authorized by the Confidentiality Stipulation and Protective Order to have such access. I will inform any of my employees or staff who encounter such material of the terms of the Confidentiality Stipulation and Protective Order.

I understand that my obligations regarding Confidential Information under the Confidentiality Stipulation and Protective Order apply equally to copies, summaries, excerpts, transcripts, indices, expert reports, or compilations of information *containing* Confidential Information, as well as any knowledge or information *derived from* any such information I receive during the Proceeding.

I have been advised and agree that any unauthorized use or disclosure by me of such Confidential Information will be treated as a breach of the Confidentiality Stipulation and Protective Order for which I may be held responsible.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: _____

Name: _____

Signature: _____

Firm or Company: _____

Address: _____